E ON WHICH REGULATION 6 OF MARPOL ANNEX V, IN RESPECT OF

THE RED SEA SPECIAL AREA, SHALL TAKE EFFECTRESOLUTION MEPC.382(80) (adopted on 7 July 2023)

ESTABLISHMENT OF THE DATE ON WHICH REGULATION 6 OF MARPOL ANNEX V, IN RESPECT OF

THE RED SEA SPECIAL AREA, SHALL TAKE EFFECT

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RESOLUTION MEPC.397(83) (adopted on 11 April 2025)

OF NITROGEN OXIDES FROM MARINE DIESEL ENGINES (NOx TECHNICAL CODE 2008)RESOLUTION MEPC.397(83)

(adopted on 11 April 2025)

OF NITROGEN OXIDES FROM MARINE DIESEL ENGINES

(NOx TECHNICAL CODE 2008)

(Use of multiple engine operational profiles for a marine diesel engine,

including clarifying engine test cycles)

THE MARINE ENVIRONMENT PROTECTION COMMITTEE

RECALLING Article 38(a) of the Convention on the International Maritime Organization

concerning the functions of the Marine Environment Protection Committee conferred upon it by

international conventions for the prevention and control of marine pollution from ships,

RECALLING ALSO article 16 of the International Convention for the Prevention of Pollution

from Ships, 1973, as modified by the Protocols of 1978 and 1997 relating thereto (MARPOL),

which specifies the amendment procedure and confers upon the appropriate body of

the Organization the function of considering amendments thereto for adoption by the Parties,

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which specifies the amendment procedure and confers upon the appropriate body of

the Organization the function of considering amendments thereto for adoption by the Parties,

RECALLING FURTHER regulation 13 of MARPOL Annex VI, which makes the Technical Code

on Control of Emission of Nitrogen Oxides from Marine Diesel Engines (hereafter "NO x

Technical Code 2008") mandatory under that Annex,

HAVING CONSIDERED, at its eighty -third session, draft

Code 2008 concerning the use of multiple engine operational profiles for a marine diesel

engine, including clarifying engine test cycles, as appropriate, approved at its eighty-second

session and duly circulated in accordance with article 16(2)(a) of MARPOL,

1 ADOPTS, in accordance with article 16(2)(d) of MARPOL,

Technical Code 2008, the text of which is set out in the annex to the present resolution;

2 DETERMINES, in accordance with articles 16(2)(f)(ii) and (iii) of MARPOL, that the

amendments shall be deemed to have been accepted on 1 September 2026 unless prior to that

date not less than one third of the Parties or Parties the combined merchant fleets of which

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amendments shall be deemed to have been accepted on 1 September 2026 unless prior to that

date not less than one third of the Parties or Parties the combined merchant fleets of which

constitute not less than 50% of the gross tonnage of the world's merchant fleet have communicated to the Organization their objection to the amendments;

3 INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of MARPOL, the said amendments shall enter into force on 1 March 2027 upon their acceptance in accordance with paragraph 2 above;

4 ALSO INVITES the Parties to note that the said amendments shall enter into effect as follows:

(a) for a new individual engine or a parent engine of an engine family or engine group that has not been previously certified, the said amendments apply no later than 1 January 2028, based on the issue date of the EIAPP Certificate for the individual engine or parent engine;



(b) in the case of a new member engine to an engine family or engine group for

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OF NITROGEN OXIDES FROM MARINE DIESEL ENGINES (NOx TECHNICAL CODE 2008)- 2 –

(b) in the case of a new member engine to an engine family or engine group for which the parent engine was certified before 1 January 2028, prior to the certification of that member engine it would need to be shown that the engine family or engine group complie d with the said amendments no later than 1 January 2030 based on the issue date of the EIAPP Certificate for that member engine;

(c) the said amendments do not apply to a marine diesel engine which already has an EIAPP Certificate except:

(i) in the case of an engine that is subject to substantial modification on or after 1 January 2028, the said amendments would apply as specified in the definitions of "substantial modification"